

TENTATIVE RULINGS FOR MAY 8, 2026
Department R17
BEFORE THE HONORABLE JANET M. FRANGIE
(sitting on assignment)

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court's website after 3:00 p.m. the day before the hearing at <https://www.sb-court.org/divisions/civil/civil-tentative-rulings>.

You may appear in person or by remote appearance at the hearing. (See www.sb-court.org/general-information/remote-access) If you do not have Internet access you may obtain the tentative ruling by calling (909) 285-3753 or telephoning the department at 909-285-3732] If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 p.m. the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

1.

CASE NUMBER	CASE NAME	TYPE OF HEARING
CIVRS2503211	<i>Shawna Overstreet v Marchello Johnson, et a l</i>	Plaintiff's Motion to Correct Clerical Mistake

Tentative Ruling:

Request for Judicial Notice:

The Court grants Defendants' Request for Judicial Notice of the complaint pursuant to California Evidence Code Sections 452 and 453.

Motion to Correct Clerical Mistake:

The motion is granted. The initial pleadings, including Plaintiff's Complaint, shall be corrected, nunc pro tunc, to reflect the filing date of April 8, 2025. The clerk of the Court is directed to comply with the Court's Order. Attorney's fees are denied.

Demurrer:

- a. The Court finds that counsel failed to meet and confer in person, telephonically, or via video conference as required by Code of Civil Procedure section 430.41 and as expressly ordered by the Court in its March 6, 2026 Order.
- b. Notwithstanding the failure to properly meet and confer and apparent violation of the Court's March 6, 2026 Order, the Court will hear the demurrer on its merits.
- c. The Court sets an Order to Show Cause why sanctions of up to \$1,500 payable to the Court should not be imposed against attorneys Susan B. Rousier and Samuel Che for violating the Court's March 6, 2026 Order pursuant to Code of Civil Procedure section 177.5. The attorneys are ordered to appear and the OSC is set for June 10, 2026 at 9:00 a.m. in Department 17 and
- d. The demurrer is overruled in light of the above decision granting the motion to amend the filing date on the complaint.

Moving party is directed to give notice of ruling.

2.

CASE NUMBER	CASE NAME	TYPE OF HEARING
CIVRS2504530	<i>Michael Kaiser v Duarte & Associates, et al</i>	Cross-Defendants' Motion to Set Aside Default

Tentative Ruling:

Cross-Defendants' Evidentiary Objections:

REQUEST NO.	SUSTAINED	OVERRULED	COMMENTS
1		X	
2		X	
3	X		Sustain 5 th , 6 th and 7 th sentences. Balance of paragraph overruled
4	X		Sustain 5 th , 6 th and 7 th sentences. Balance of paragraph overruled
5		X	
6		X	
7	X		Sustain 2 nd , 4 th , and 5 th sentences. Balance of paragraph overruled
8	X		
9	X		
10		X	
11	X		
12	X		